

Multiple Choice (10 marks)

1. Are there any limits to the application of article 103 of the UN Charter?
 - (a) No, there are no limits to article 103
 - (b) Yes, Article 103 cannot trump multilateral treaties
 - (c) Yes, article 103 of the UN Charter cannot trump jus cogens norms
 - (d) Yes, when a case is submitted to the ICJ, article 103 ceases to have any effect
2. Which of the following purposes does the 'internal point of view' play in Hart's concept of law?
 - (a) It distinguishes social rules from mere group habits.
 - (b) It defines the judicial function.
 - (c) It illustrates the authority of the legislature.
 - (d) It stresses the relationship between law and justice.
3. What is the relationship between the formal sources of international law?
 - (a) There is no hierarchy between the formal sources of international law
 - (b) Treaties supersede custom
 - (c) Custom supersedes treaties
 - (d) General Principles of Law supersede both custom and treaties
4. What does it mean for a State to be sovereign?
 - (a) Sovereignty means being recognised by all other States
 - (b) Sovereignty means to be able to enter into treaties and join the UN
 - (c) Sovereignty means freedom to determine one's own affairs without external interference
 - (d) Sovereignty means possessing the right to defend oneself
5. What is the purpose of universal jurisdiction?
 - (a) Its aim is to establish certain offences as universal
 - (b) Its aim is to deter the commission of certain international crimes
 - (c) Its aim is to provide jurisdiction to all States in respect of particular crimes
 - (d) Its aim is to provide jurisdiction to all States in respect of all international crimes

True / False (10 marks)

Answer True or False

6. True or False: Legal positivism regards morals and law as inseparable entities influencing legal interpretation.
7. True or False: The Social Fact Thesis claims that legal systems operate independently of social influences and forces.
8. True or False: Social and economic rights are commonly classified as first generation rights in international human rights law.
9. True or False: Any definition of punishment should be value-neutral to ensure fairness and objectivity in its application.
10. True or False: Hobbes argues that peace can only be achieved through the establishment of law and order.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the nature of the methods for peaceful settlement of disputes in constitutional law, evaluating whether there exists a hierarchy among these methods and the implications for disputing states.
12. Discuss the principle of 'pacta sunt servanda' in the context of international law, analyzing its significance in treaty obligations and the expectations of good faith among parties.

End of Paper